

HOUSE No. 1567

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas M. Stanley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a statewide affirmatively furthering fair housing framework.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1567

By Representative Stanley of Waltham, a petition (accompanied by bill, House, No. 1567) of Thomas M. Stanley relative to fair housing assessments for large-scale housing developments. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1375 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a statewide affirmatively furthering fair housing framework.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 40A of the General Laws is hereby amended by inserting after
2 section 17 the following section:-

3 Section 18. (a) As used in this section, the following terms shall, unless the context
4 appears otherwise, have the following meanings:-

5 “Affirmatively further”, to take any action rationally related to promoting any attribute or
6 attributes of fair housing.

7 “Fair housing”, housing that, among other attributes, is affordable, safe, decent, free of
8 unlawful discrimination and accessible as required by chapter 151B or 42 U.S.C.A. §§ 1982 and
9 3604.

“Large-scale development”, a condominium association or apartment building with 35 or more residential dwelling units.

(b) Any person who intends to construct a large-scale development shall complete a fair housing assessment in a form to be prescribed by the department of housing and community development. The fair housing assessment shall describe, at a minimum: (1) the projected impact of the development on fair housing, housing discrimination and displacement; and (2) how the proposed development would minimize harm and affirmatively further fair housing.

(c) Any person who intends to construct a large-scale development shall provide the fair housing assessment described in subsection (b) to the department of housing and community development and the municipality in which the construction will take place not later than 180 days prior to the beginning of construction.

(d) The executive office of housing and liveable communities may issue fines for noncompliance with this section.

SECTION 2. The executive office of housing and liveable communities shall promulgate regulations in accordance with section 1, including a schedule of fines for noncompliance, not later than 60 days after the effective date of this act.